# Individual Employment Agreement

Between

## Alibaba (New Zealand) Limited

Company number: 6135033

NZBN: 9429043398461

**Employer**

and

## Andrei Stoian

**Employee**

**Dated: 25th March 2026**

_____

# Individual Employment Agreement

## 1. Purpose of this Agreement

1.1 The purpose of this Agreement and its Schedules is to set out the terms and conditions that apply to the employment relationship between the Parties.

## 2. Term

This Agreement will commence on the date specified in Schedule 1 and will continue indefinitely, unless terminated earlier in accordance with this Agreement (the **Term**).

## 3. Duties

3.1 The Employee will perform the duties set out in the relevant Job Description. The Employee also agrees to perform all other reasonable duties and comply with reasonable instructions issued by the Employer.

3.2 The Employee's duties may be amended by the Employer from time to time following consultation with the Employee.

3.3 The Employee will report to the person or position specified in Schedule 1 or to any other representative of the Employer as designated from time to time.

## 4. Hours of Work

4.1 The Employee's hours of work are set out in Schedule 1. From time to time, the Employee may be asked to work additional hours to what is set out in Schedule 1. The Employee does not have to accept any additional work they are offered but if they do agree to work additional hours, the Employee agrees their salary includes compensation for any additional hours that they work (unless the Employer and Employee have agreed upon another arrangement in advance).

4.2 The Employee will be entitled to rest and meal breaks in accordance with the Employment Relations Act 2000.

## 5. Location

5.1 The Employee will perform their duties at the Employer's premises specified in Schedule 1 or at any other location to which the Employee is reasonably directed to work from time to time.

## 6. Remuneration, Benefits and Expenses

6.1 The Employee's remuneration and bonuses are recorded in Schedule 1 and will be paid fortnightly by direct credit into a bank account nominated by the Employee.

6.2 The Employee will be reimbursed by the Employer for any reasonable expenses properly incurred by the Employee in the performance of their duties upon production of appropriate receipts.

6.3 On the Employee's anniversary, the Employee's salary will be adjusted for inflation, based on the current NZ official rate.

## 7. Performance and Review

The Employer will, after consultation with the Employee, set the Employee's objectives at least on an annual basis. The Employer will conduct a performance review of the Employee on at least an annual basis.

## 8. KiwiSaver

8.1 As the Employee is commencing employment with the Employer, the Employee will be automatically enrolled into KiwiSaver. Enclosed with this Agreement is a KiwiSaver Information Pack produced by the IRD and which contains the KiwiSaver Deduction Form (KS2) that the Employee is required to complete and return either to the Employer or the IRD.

8.2 The Employee may opt out of KiwiSaver between weeks 2 to 8 of commencing employment by completing the Opt Out Request Form (KS10) and returning either to the Employer or the IRD.

8.3 The Employer will commence deductions of employee contributions from the Employee's first pay date after commencing employment. If the Employee remains a KiwiSaver member, and is not on a contributions holiday, then the Employer will also make employer contributions in accordance with the KiwiSaver Act 2006.

## 9. Annual Leave

9.1 From the commencement of the Employee's employment, the Employee will be entitled to the annual leave set out in Schedule 1 of this Agreement. When annual leave is to be taken is to be agreed between the Employer and Employee.

9.2 The Employer may close down all or part of its operations regularly once a year and require the Employee to take leave during the period of the closedown. The Employer will provide the Employee with at least 14 days' notice of a closedown.

## 10. Public Holidays

10.1 The Employee is entitled to public holidays under the Holidays Act 2003.

10.2 The Employee may be required to work on a public holiday. Where the Employee works on a public holiday the Employee will be paid time and a half of either their relevant daily pay or average daily pay for all hours worked on that day. In addition, if that day would otherwise have been a working day for the Employee, the Employee will also be entitled to an alternative holiday to be taken as agreed between the Employer and the Employee.

## 11. Sick Leave

11.1 From the commencement of the Employee's employment, the Employee will be entitled to the sick leave set out in Schedule 1 of this Agreement for each subsequent 12 months' employment. Sick leave can be taken where the Employee is sick or injured, or where the Employee's spouse or a person who is dependent on the Employee is sick or injured.

11.2 Sick leave may be carried over from one year to the next up to a maximum entitlement of 20 days' sick leave.

11.3 Where the Employee has been absent on sick leave for at least three consecutive calendar days, the Employer will be entitled to require the Employee to provide proof of sickness or injury, at the Employee's cost. When an Employee has been absent on sick leave for less than three consecutive calendar days, the Employer will still be entitled to require the Employee to provide proof of sickness or injury, but at the Employer's cost.

## 12. Dismissal for Sickness, Illness or Injury

12.1 If, in the reasonable opinion of the Employer, the Employee is incapable of the proper performance of his or her duties by reason of sickness, illness or injury, the Employer may terminate the Employee's employment by providing the notice in Schedule 1.

12.2 In the course of assessing whether the Employee is capable of the proper performance of his or her duties, the Employer may require the Employee to undergo a medical or psychiatric examination.

12.3 If the Employee refuses to attend a medical or psychiatric examination or assessment or refuses to allow the Employer access to any report following such an examination or assessment, the Employer reserves its right to make a decision regarding the Employee's capacity to properly perform his or her duties on the information available to it.

## 13. Bereavement Leave

After six months' employment the Employee will be entitled to three days' bereavement leave in accordance with the Holidays Act 2003.

## 14. Family violence leave

If the Employee is a person affected by family violence leave then they are entitled to 10 days of family violence leave in each 12-month period, and they can also request flexible working arrangements. 'A person affected by family violence' means a person who:

a) had family violence inflicted upon them or is currently having family violence inflicted upon them; and/or

b) has a child living with them (normally or periodically) who has had family violence inflicted upon them or is currently having family violence inflicted upon them.

## 15. Parental Leave

The Employee will be entitled to parental leave in accordance with the Parental Leave and Employment Protection Act 1987.

## 16. Health and Safety

The Employee is required to comply with the Health and Safety at Work Act 2015 and is required to be familiar with and comply with the Employer's Health & Safety Policy, including taking all practicable steps to ensure no action or inaction by the Employee affects the Employee's own health and safety or the health and safety of any other person.

## 17. Confidentiality

17.1 The terms of this Agreement are confidential to the Parties.

17.2 The Employee will not, whether during the Term of this Agreement or after its termination for whatever reason, copy, use, disclose or distribute to any person or entity, otherwise than as necessary for the proper performance of the Employee's employment under this Agreement, or as required by law, any confidential information which is not in the public domain and which is reasonably regarded by the Employer as confidential to it, which the Employee has become aware of in the course of performing this Agreement. Such information includes, but is not limited to, trade secrets, confidential business and technical information, business methods and management systems, detailed information and records relating to customers, suppliers, staff and parties with whom the Employer deals commercially, strategic information relating to marketing, advertising or any other aspect of business, computer software, data and known-how not generally known to the public.

## 18. Copyright and other Intellectual Property

18.1 All work produced for the Employer by the Employee under this agreement or otherwise and the right to the copyright and all other intellectual property in all such work is to be the sole property of the Employer.

## 19. Termination

19.1 Either party may terminate this Agreement by providing in writing the notice set out in Schedule 1.

19.2 The Employer may, at its discretion, pay the Employee in lieu of working some or all of this notice period. In addition to, or as an alternative to, paying the Employee in lieu of working some or all of their notice period, the Employer may require the Employee not to attend the workplace during some or all of their notice period, but to continue to be employed by the Employer.

19.3 Nothing in this Agreement will prevent the Employer from terminating the Employee's employment without notice for serious misconduct.

19.4 On termination of this Agreement, the Employee must return to the Employer any property or equipment of the Employer, including any Intellectual Property, which is in the Employee's possession or control.

## 20. Abandonment

20.1 In the event the Employee has been absent from work for three consecutive working days without any notification to the Employer, and the Employer has made reasonable efforts to contact the Employee, this Agreement will automatically terminate (without notice) on the expiry of the third day.

## 21. Suspension

21.1 Provided the Employer consults with the Employee prior to the imposition of suspension, the Employer reserves the right to suspend the Employee on pay:

(a) while investigating serious misconduct, negligence in the performance of the Employee's duties, or repeated breach of this Agreement; or

(b) where, because of a condition, illness, or injury, the Employer believes that the Employee constitutes an immediate hazard to him or herself, or to others.

21.2 In the event that the employer is required for genuine reasons and in good faith to continue the suspension beyond 2 weeks, such continued suspension will not be on pay.

## 22. Redundancy

22.1 Redundancy is a situation where the Employee's position is surplus to the Employer's requirements.

22.2 In the event the Employee's employment is to be terminated by reason of redundancy, the Employee will be provided in writing with the notice set out in Schedule 1. The Employee will be entitled to the redundancy compensation set out in Schedule 1 unless the Employee is offered an alternative role which is on the same or similar terms as the Employee's current employment agreement.

22.3 In the event that the Employee's position is redundant by reason of the sale, transfer, lease, outsourcing, merger or amalgamation of any part of the Employer's business or operations, the Employee will not be entitled to redundancy compensation if they are offered employment by the purchaser, transferee, lessee, outsourcing party or merged or amalgamated entity, on terms of employment which are the same or similar as the Employee's present terms of employment.

22.4 For the purpose of this clause, **same or similar** means terms and conditions of employment on which the Employee is employed:

(a) on the same or greater salary;

(b) in the same broad geographical area, where the Employee is required to travel no further than 20 km from the Employer's present location; and

(c) at the same or equivalent level as that in the Employer's hierarchy,

that applied immediately prior to the sale, transfer, lease, outsourcing, merger or amalgamation.

## 23. Policies

23.1 The Employer has a number of policies and procedures in place. The Employee is expected to be familiar with these policies and comply with them at all times.

23.2 The Employer may change the content of its policies from time to time, or introduce new ones. The Employee must ensure that he or she is familiar with the policies and procedures in place at any time

## 24. Employment Protection

24.1 In the event of a restructuring – as defined in section 69OI of the Employment Relations Act 2000 – which affects the continuation of the Employee's employment, the Employer will as soon as is reasonably practicable, taking into account the commercial requirements of the Employer:

(a) meet with the Employee to provide the Employee with information about the proposed restructuring and how that affects the Employee's employment; and

(b) commence negotiations with a potential new employer concerning:

(i) whether or not the Employee will be offered employment with the new employer;

(ii) if so, the terms and conditions of employment on which the Employee will be offered employment with the new employer; and

(iii) if so, the date on which the Employee is to transfer to the new employer; and

(iv) if the Employee is not to transfer to a new employer, the relevant entitlements of the Employee, if any.

## 25. Employment Relationship Problems

25.1 If the Employee has any issues in respect of their employment, those issues should be raised with the Employer on an informal basis as soon as possible so that they can be resolved. If the matter is not resolved either party can seek assistance from the Ministry of Business, Innovation and Employment's Mediation Service.

25.2 If the employment relationship problem is a personal grievance, the Employee must raise that grievance with the Employer within 90 days of the event giving rise to the grievance or coming to the Employee's attention.

## 26. Deductions from Salary or Wages

26.1 The Employee agrees that deductions may be made from the Employee's wages, with notice, in the following circumstances:

(a) Where the Employer has made an overpayment to the Employee;

(b) Where the Employee owes any money to the Employer, and

(c) When the Employee fails to provide the notice period of termination specified in Schedule 1. In this situation the Employer may deduct from any salary payable upon termination of employment any overpayment made to you for leave taken in advance.

## 27. Variation

This Agreement may be varied by mutual agreement of the Parties, provided that no variation will be effective or binding on either party unless it is in writing and signed by both Parties.

## 28. Severability

If any provision(s) of this Contract is held to be invalid or unenforceable by any court of competent jurisdiction, then such invalidity or unenforceability will not affect the remaining provisions of this Contract.

## 29. Entire Agreement

This Agreement contains the entire agreement between the Parties.

## 30. Governing Law

This Agreement is governed by the laws of New Zealand and the Parties submit to the non-exclusive jurisdiction of the courts of New Zealand.

## 31. Employee Acknowledgement

31.1 The Employee acknowledges that:

(a) they have been advised of their right to take independent advice on the terms of this agreement;

(b) they have been provided with a reasonable opportunity to take that advice;

(c) they have read these terms of employment and understand these terms and their implications;

(d) they agree to be bound by these terms of employment and the Employer's policies and procedures as implemented by the Employer from time to time; and

(e) they have disclosed any matter that could have materially influenced the Employer's decision whether or not to employ the Employee, and have only made true and complete representations as to qualifications, skills and experience.

| | |
|---|---|
| **Signed** for and on behalf of **Alibaba (New Zealand) Ltd** | **Mircea Andrei Stoian** |
| **Date** | **Date** |
| **Witnessed** for and on behalf of **Alibaba (New Zealand) Ltd** | **Mircea Andrei Stoian signature witnessed by** |
| **Date** | **Date** |

# Schedule 1

| | |
|---|---|
| **Position:** | Chief Data Scientist |
| **Reporting to:** | Directors |
| **Location:** | The Employee's usual place of work will be at the Employer's premises at 3 Como Street, Takapuna, Auckland. |
| Start date | 20th April 2026 |
| **Hours:** | 40 hours per week to be worked between 8:30am and 5:30pm across Monday - Saturday. |
| **Remuneration:** | NZ$300,000/pa by direct payment to the employees designate accounts |
| **Bonuses** | Bonus will be agreed according to KPIs and company performance |
| **Annual Leave:** | The Employee is entitled to five weeks annual leave per annum. |
| **Sick Leave:** | The Employee is entitled to ten days sick leave per annum. |
| **Notice Period:** | Twelve weeks notice. |
| **Redundancy Compensation:** | Three months' salary |

**Schedule 2**

**Job Description**

# Chief Data Scientist – Supply Chain & Platform Intelligence

**Location**

**Auckland, New Zealand (Hybrid/Flexible), with periodic engagement in Wellington and other operational regions across New Zealand and Australia, and interface with China-based teams.**

**Employment Type**

**Full-Time, Permanent**

## Role Overview

**As Chief Data Scientist, you will define and lead the data science function underpinning a transnational, vertically integrated food and beverage supply platform spanning New Zealand, Australia, and China.**

**This role is responsible for building a high-performing data science and analytics capability that connects:**

- **Domestic FMCG supermarket operations**
- **Export logistics and cross-border supply chains**
- **China-based retail and demand ecosystems**

- **Production systems, including craft beverage manufacturing**

**You will architect the data, modelling, and decision intelligence layer that enables the platform to operate as a market-linked, demand-responsive system, rather than a traditional forecast-driven supply chain.**

**This is a foundational leadership role with responsibility for:**

- **Team design and capability development**
- **Data science strategy and roadmap**
- **Integration with engineering, operations, and commercial functions**
- **Embedding data-driven decision-making across the enterprise**

## Core Mandate

**Build and lead a data science function that transforms fragmented operational data into a cohesive, real-time intelligence system driving:**

- **Demand-synchronized production and distribution**
- **Continuous optimization of supply chain performance**
- **Cross-market (NZ ↔ China) insight translation**
- **Measurable improvements in margin, efficiency, and product-market fit**

## Key Responsibilities

### 1. Data Science Strategy & Team Leadership

- **Define and execute the data science vision, roadmap, and operating model**
- **Build and lead a multidisciplinary team (data scientists, ML engineers, analysts)**
- **Establish best practices in:**
    - **Model development and deployment**
    - **Experimentation frameworks**
    - **Data governance and reproducibility**
- **Partner with Data Engineering to align on scalable architecture and pipelines**
- **Act as the central authority on data-driven decision systems across the business**

**2. End-to-End Supply Chain Intelligence Architecture**

- **Design integrated models spanning:**
    - **Demand forecasting**
    - **Inventory optimization**
    - **Logistics and routing efficiency**
    - **Production planning**
- **Move the organization from:**
  **Forecast-driven → demand-linked and adaptive systems**
- **Develop closed-loop systems linking:**
    - **Retail demand signals**
    - **Production outputs**
    - **Logistics execution**

**3. Domestic FMCG & Retail Analytics (NZ/AU)**

- **Oversee modelling of:**
    - **Demand patterns, seasonality, and elasticity**
    - **Inventory turnover and shrinkage**
    - **Supplier and distribution performance**

- **Ensure delivery of:**
    - **Decision tools for procurement and replenishment**
    - **Shelf availability optimization frameworks**
    - **Integrated retail and supply analytics**

**4. China Market Demand Integration**

- **Lead development of models for:**
    - **Cross-border demand forecasting**
    - **Regional and cultural consumption patterns**
    - **Promotion and pricing sensitivity**
- **Establish data interfaces with China-based partners to:**
    - **Ingest real-time market signals**
    - **Translate insights into production and export decisions**
- **Ensure continuous alignment between:**
    - **NZ production systems**
    - **China retail demand**

**5. Production & Manufacturing Intelligence (Craft Beverage Focus)**

- **Build analytics capability across owned and partner production environments:**
    - **Yield optimization**
    - **Cost-to-serve modelling**
    - **Production scheduling**
- **Develop simulation and scenario modelling tools for:**
    - **Capacity planning**
    - **Demand variability**
    - **Distribution constraints**
- **Standardize KPI frameworks across facilities:**
    - **Efficiency, waste, downtime, and consistency**

**6. Data Platform & Integration Oversight**

- **Partner with engineering teams to ensure robust integration across:**
    - **ERP, MES, CRM systems**
    - **IoT and production sensor networks**
    - **Retail and logistics platforms**
- **Define and enforce:**
    - **Master data standards**
    - **Data interoperability across NZ and China systems**
    - **Scalable analytics architecture**
- **Lead development of a unified data layer combining:**
    - **Production**
    - **Supply chain**
    - **Retail outcomes**

**7. Strategic Decision Support & Business Impact**

- **Translate complex modelling into clear, actionable insights for senior leadership**
- **Influence decisions across:**
    - **Product portfolio strategy**
    - **Supplier selection and performance**
    - **Pricing and margin optimization**
    - **Market expansion and segmentation**
- **Support sustainability initiatives through:**
    - **Carbon modelling**
    - **Freight and logistics efficiency analysis**
- **Position New Zealand operations as a data-driven innovation testbed for broader international rollout**

## Key Skills & Experience

- **8+ years in data science, with leadership experience in building and scaling teams**

- **Proven experience in at least one of:**
  - **FMCG / retail analytics**
  - **Supply chain and logistics**
  - **Manufacturing or production systems**
- **Strong expertise in:**
  - **Machine learning (forecasting, optimization, simulation)**
  - **Statistical modelling and experimentation**
  - **Data architecture collaboration**
- **Technical proficiency in:**
  - **Python / R / Scala**
  - **SQL and large-scale data processing**
  - **Cloud platforms (AWS, Azure, or GCP)**
  - **BI and visualization tools**
- **Experience with:**
  - **Cross-border data environments**
  - **Perishable goods or export logistics (highly advantageous)**
  - **MES / SCADA / production data systems (beneficial)**
- **Familiarity with China market dynamics (or strong willingness to develop expertise)**

## Leadership & Personal Attributes

- **Strong commercial acumen with the ability to connect data science to tangible business outcomes**
- **Proven ability to build, lead, and scale high-performing teams**
- **Comfortable operating across:**
  - **Technical teams**
  - **Operational stakeholders**
  - **Executive leadership**

- **Effective communicator across:**
  - **SMEs and producers**
  - **Logistics and retail partners**
  - **International corporate stakeholders**
- **Pragmatic, systems-oriented thinker with a bias toward execution**
- **Interest in sustainable supply chains, data ethics, and applied innovation**

## Reporting Line

**Reports to:**
**Executive Lead – Supply Chain & Platform Strategy (NZ)**

**Dotted line to:**
**China Market Integration & Strategy Lead**

## What We Offer

- **Opportunity to build and lead the data intelligence backbone of a new transnational supply platform**
- **Direct impact on a vertically integrated NZ → China food ecosystem**
- **Exposure to complex, high-value problems across:**
  - **Supply chain**
  - **Retail**
  - **Manufacturing**
  - **International markets**
- **Collaborative, high-autonomy environment with strong strategic backing**
- **Competitive executive compensation with performance-linked incentives tied to platform growth and export success**

## Positioning Statement

**This role is not a traditional data science leadership position.**

**It is an opportunity to build a core strategic function that sits at the intersection of:**

- **Food systems**
- **Global trade**
- **Digital platforms**
- **Applied AI**

**— and to define how data fundamentally reshapes the way supply chains operate across borders.**